Part 4 should logically move from federal civil-rights pleading into the operational side of litigation: discovery, depositions, evidence authentication, public-records enforcement, subpoenas, and building the evidentiary record.

COLD PAPER WAR

THE PRO SE LITIGATION GUIDE

VOLUME 4 — DISCOVERY, EVIDENCE & THE RECORD

Discovery • Depositions • Subpoenas • Authentication • Public Records • ESI • Evidence Control

Storytelling Adventures Studio Inc.

Reverend Zachariah Tringali
Outreach Director, House of Mercy Ministry

> “The complaint tells the court what happened. Discovery is how you prove who knew, who acted, what they possessed, and what the record reveals.”

LEGAL AND EDITORIAL NOTICE

This volume is an educational litigation-planning resource and is not legal advice. Discovery practice varies according to the Federal Rules of Civil Procedure, applicable statutes, local rules, standing orders, scheduling orders, protective orders, and the circumstances of the particular case.

Before serving discovery, filing a motion, issuing a subpoena, taking a deposition, or relying upon evidence, verify the current governing authority.

A litigant should conduct discovery in good faith, respect applicable privileges and privacy protections, preserve evidence, avoid harassment, and never use discovery as a substitute for unsupported accusations.

CORE PRINCIPLE

Discovery is not a fishing expedition. It is a controlled process for testing factual propositions.

The objective is not to obtain every document that exists.

The objective is to identify the evidence necessary to establish:

who → did what → when → under whose authority → using what information → pursuant to what policy → with what consequences.

TABLE OF CONTENTS

1. The Discovery Command Center
2. Rule 26 and the Discovery Plan
3. Interrogatories
4. Requests for Production
5. Requests for Admission
6. Depositions
7. Subpoenas and Nonparty Discovery
8. Electronic Stored Information
9. Authentication and Foundation
10. Public Records as Litigation Evidence
11. Privilege, Confidentiality, and Protective Orders
12. Discovery Disputes and Rule 37
13. Deposition Strategy and Examination Architecture
14. Evidence Indexing and Exhibit Control
15. Building the Litigation Record
16. Discovery Abuse, Sanctions, and Spoliation
17. The Pro Se Discovery Audit
18. Appendix: Discovery Templates and Checklists

---

1. THE DISCOVERY COMMAND CENTER

A serious federal case requires a centralized discovery system.

Create a litigation command center containing:

- case caption;

- docket number;
- court;
- assigned judge;
- magistrate judge;
- parties;
- counsel information;
- scheduling deadlines;
- discovery cutoff;
- dispositive-motion deadline;
- trial date;
- discovery requests;
- discovery responses;
- deposition schedule;
- subpoena log;
- evidence index;
- preservation notices;
- public-records requests;
- correspondence;
- motions;
- orders; and
- settlement communications.

The objective is simple:

Nothing important should exist only in memory.

---

2. RULE 26 AND THE DISCOVERY PLAN

Federal discovery begins with the applicable rules and scheduling order.

The litigant should determine:

- when discovery opens;
- when discovery closes;
- whether initial disclosures are required;
- the applicable proportionality standard;
- the permitted discovery methods;
- limitations imposed by the court;
- privilege obligations;
- expert-disclosure deadlines; and
- procedures for discovery disputes.

Discovery should be proportional to the needs of the case.

A $5,000 dispute and a constitutional challenge involving a municipal surveillance system may require radically different discovery architectures.

The scope should therefore be connected to the claims and defenses actually before the court.

---

3. INTERROGATORIES

Interrogatories are written questions requiring written answers under oath, subject to applicable rules and limitations.

3.1 The Identification Interrogatory

One of the most useful functions of interrogatories is identification.

Ask the opposing party to identify:

- individuals involved;
- decision-makers;
- witnesses;
- policies;
- communications;
- documents;
- systems;
- contractors;
- relevant dates; and
- persons with knowledge.

3.2 Build From the Elements

Do not ask random questions.

For every interrogatory, identify the proposition it is intended to establish.

For example:

Issue: Who authorized the action?

Discovery objective: Identify the decision-maker.

Interrogatory: Identify each person who authorized, directed, approved, reviewed, or participated in the challenged action and state the person's role.

The question is connected directly to the legal issue.

3.3 Avoid Argumentative Interrogatories

An interrogatory should generally seek information rather than force the opposing party to agree with the plaintiff's legal characterization.

Instead of:

> “Why did you illegally seize my property?”

seek the underlying facts:

> “Identify each person who authorized or participated in the seizure of the property identified in the complaint.”

---

4. REQUESTS FOR PRODUCTION

Requests for production are particularly important in civil-rights cases because many critical facts exist in government or corporate records.

Potential categories include:

- policies;
- procedures;
- training materials;
- emails;
- text messages where discoverable;
- photographs;
- videos;
- body-camera footage;
- CAD records;
- dispatch records;
- incident reports;
- property inventories;
- photographs;
- contracts;
- invoices;

- communications with contractors;
- complaints;
- investigations;
- disciplinary records where legally discoverable;
- database records;
- access logs;
- audit trails;
- meeting minutes;
- procurement documents;
- surveillance records; and
- electronically stored information.

4.1 Define the Time Period

A request without temporal boundaries can become unnecessarily broad.

Tie the period to:

- the incident;
- prior similar incidents;
- subsequent institutional response; or
- the relevant policy period.

4.2 Define the Subject

A request should identify the subject matter sufficiently for the responding party to understand what is being requested.

4.3 Request Native ESI Where Appropriate

When metadata or system information matters, consider requesting electronically stored information in an appropriate usable format.

The question is not merely:

> “What does the document say?”

It may also be:

> “When was it created?”
>
> “Who modified it?”
>
> “What metadata exists?”

> “What system produced it?”
>
> “What audit trail exists?”

---

5. REQUESTS FOR ADMISSION

Requests for admission can narrow the case dramatically.

They can address:

- authenticity;
- ownership;
- dates;
- identity;
- existence of policies;
- receipt of notices;
- communications;
- organizational relationships; and
- undisputed factual propositions.

The strongest requests are usually simple.

For example:

> Admit that the document attached as Exhibit A was transmitted by Defendant to Plaintiff on the date identified in the document.

A successful admission can eliminate unnecessary proof.

5.1 Do Not Turn RFAs Into Argument

Avoid lengthy argumentative statements containing multiple propositions.

Break complicated propositions into separate requests.

---

6. DEPOSITIONS

Depositions provide an opportunity to obtain sworn testimony and preserve a factual record.

Potential deponents may include:

- eyewitnesses;
- government officials;
- police officers;
- records custodians;
- policy makers;
- technical personnel;
- contractors;
- supervisors;
- investigators; and
- other individuals with material knowledge.

6.1 Deposition Objective

A deposition should have a defined purpose.

Possible objectives include:

- identifying the decision-maker;
- establishing chronology;
- authenticating records;
- establishing knowledge;
- identifying policies;
- identifying witnesses;
- testing an explanation;
- preserving testimony; or
- narrowing disputed facts.

6.2 The Four-Stage Examination

A useful structure is:

Foundation → Chronology → Decision → Consequence.

First establish who the witness is.

Then establish what happened.

Then establish who made the relevant decision.

Finally establish what happened because of that decision.

---

7. SUBPOENAS AND NONPARTY DISCOVERY

Nonparties may possess critical evidence.

Potential nonparty sources include:

- contractors;
- hospitals;
- transportation companies;
- technology vendors;
- telecommunications providers;
- property managers;
- surveillance vendors;
- third-party custodians;
- witnesses; and
- other organizations.

Federal subpoena practice is governed by Rule 45 and related authority.

The issuing party must comply with applicable requirements concerning:

- service;
- geographic limitations;
- burden;
- objections;
- privilege;
- confidentiality;
- protected information; and
- court enforcement.

A subpoena should not be treated as unlimited authority to demand whatever information exists.

---

8. ELECTRONICALLY STORED INFORMATION

8.1 ESI Is Evidence

Modern litigation frequently depends upon digital records.

Potential ESI includes:

- email;
- text messages;
- instant messages;
- cloud documents;
- photographs;
- videos;
- databases;
- spreadsheets;
- access logs;
- system logs;
- GPS data;
- metadata;
- social-media records;
- body-camera files;
- CAD data;
- dispatch records; and
- device backups.

8.2 Identify the System

When seeking digital evidence, identify:

1. The system.
2. The custodian.
3. The retention policy.
4. The relevant date range.
5. The method of collection.
6. The format.
7. The access controls.
8. The audit trail.
9. The preservation status.

8.3 Metadata

Metadata can potentially establish:

- creation date;
- modification date;
- author;
- location;

- software;
- file history;
- embedded information; and
- relationships between files.

Not every metadata field is necessarily reliable or relevant.

The litigant should identify which metadata matters to the actual issue.

---

9. AUTHENTICATION AND FOUNDATION

A document is not automatically established merely because someone attaches it to a filing.

Evidence may require authentication or another applicable foundation.

Potential foundations include:

- witness testimony;
- stipulation;
- certification;
- custodian testimony;
- distinctive characteristics;
- business-record foundations;
- public-record foundations; or
- other applicable evidentiary rules.

The correct foundation depends upon the evidence.

9.1 Maintain Provenance

For important evidence, record:

Source → acquisition date → acquisition method → original location → custodian → alterations, if any → working copy → exhibit designation.

Do not modify the original evidence unnecessarily.

---

10. PUBLIC RECORDS AS LITIGATION EVIDENCE

Public-records requests and federal discovery are related but distinct tools.

A public-records request can sometimes uncover evidence before litigation discovery begins.

Potential records include:

- policies;
- contracts;
- meeting records;
- budgets;
- procurement records;
- public correspondence;
- training documents;
- publicly releasable incident records;
- statistics;
- organizational information; and
- governmental directives.

The request should be precise.

10.1 Build a Request Matrix

Track:

Request	Date Sent	Agency	Statutory Authority	Response	Records Received	Appeal/Follow-Up

This converts a collection of requests into an auditable administrative record.

10.2 Preserve the Entire Exchange

Preserve:

- original request;
- confirmation;
- agency response;
- extensions;
- fee estimates;

- productions;
- exemptions asserted;
- correspondence;
- appeals; and
- final disposition.

The administrative history itself may become relevant evidence.

---

11. PRIVILEGE, CONFIDENTIALITY, AND PROTECTIVE ORDERS

Not every relevant document is necessarily discoverable.

Potential issues include:

- attorney-client privilege;
- work-product protection;
- statutory confidentiality;
- trade secrets;
- personal identifying information;
- medical information;
- personnel information;
- law-enforcement-sensitive information; and
- court-ordered confidentiality.

The correct response to an objection is not automatically to accuse the opposing party of concealment.

First determine:

1. What privilege or protection is asserted?
2. Who holds it?
3. What document is affected?
4. Is a privilege log required?
5. Is partial production possible?
6. Can redaction resolve the issue?
7. Does the court need to conduct an in-camera review?

---

12. DISCOVERY DISPUTES AND RULE 37

A discovery dispute should ordinarily be approached as a record-building exercise.

Document:

- the request;
- the response;
- the objection;
- the deficiency;
- meet-and-confer efforts where required;
- the specific relief requested; and
- the applicable rule.

Avoid writing:

> "Defendants are hiding everything."

Instead write:

> "Request for Production No. 7 seeks the policy governing the challenged operation. Defendant objected on grounds of relevance but did not identify a privilege or produce a responsive policy. The policy is directly relevant to the municipal-liability claim because…"

The second formulation gives the court something it can resolve.

---

13. DEPOSITION STRATEGY AND EXAMINATION ARCHITECTURE

A deposition can be organized around a chronological funnel.

Phase One — Identity

Establish:

- name;
- title;
- responsibilities;
- tenure;

- relevant training.

Phase Two — Knowledge

Ask:

- When did you first learn of the incident?
- Who notified you?
- What records did you review?
- Who else did you speak with?

Phase Three — Decision

Identify:

- who made the decision;
- what authority they relied upon;
- what policy existed;
- what alternatives were considered.

Phase Four — Documentation

Identify:

- emails;
- reports;
- photographs;
- videos;
- databases;
- communications;
- notes.

Phase Five — Consequence

Establish:

- what happened afterward;
- what property was affected;
- what investigation occurred;
- whether corrective action occurred;
- whether the policy changed.

This method is more reliable than attempting to conduct a deposition as an uninterrupted argument.

---

14. EVIDENCE INDEXING AND EXHIBIT CONTROL

Create a master evidence index.

Exhibit	Description	Date	Source	Authentication	Claim	Status
A	Incident report	Date	Agency	Custodian	Fourth Amendment	Received
B	Photograph	Date	Plaintiff	Witness/metadata	Property	Preserved
C	Email	Date	Agency	Sender/recipient	Notice	Received
D	Policy	Date	Municipality	Public record	Monell	Verified

The evidence index should be updated throughout the litigation.

Do not wait until trial to determine what the exhibits are.

---

15. BUILDING THE LITIGATION RECORD

A strong litigation record is cumulative.

The record should demonstrate:

Notice → Conduct → Documentation → Response → Consequence.

For example:

1. Plaintiff sends notice.
2. Defendant receives notice.
3. Defendant takes a specified action.
4. The action is documented.

5. Plaintiff objects.
6. Defendant responds.
7. The consequence occurs.
8. The evidence is preserved.

That sequence is substantially more useful than a generalized narrative describing months of conflict.

---

16. DISCOVERY ABUSE, SANCTIONS, AND SPOLIATION

Discovery sanctions can be serious.

Potential issues include:

- failure to preserve;
- destruction of evidence;
- evasive responses;
- failure to supplement;
- violation of discovery orders;
- improper objections;
- failure to appear;
- failure to comply with subpoenas; and
- other discovery misconduct.

16.1 Spoliation

Spoliation analysis can involve:

- whether relevant evidence existed;
- whether a preservation duty arose;
- whether the evidence was lost or destroyed;
- whether reasonable preservation measures were taken;
- whether the loss was prejudicial; and
- what remedy is authorized.

Do not allege spoliation simply because a document cannot currently be located.

The factual record must establish the necessary predicates.

16.2 Preservation Notice

A litigation-hold notice should identify the dispute sufficiently to allow potentially relevant information to be preserved.

Potential categories include:

- email;
- text messages;
- photographs;
- video;
- body-camera recordings;
- CAD;
- dispatch records;
- databases;
- cloud records;
- paper records;
- physical evidence; and
- communications with third parties.

---

17. THE PRO SE DISCOVERY AUDIT

Before declaring discovery complete, ask:

People

Who knows what happened?

Documents

What documents establish it?

Digital Evidence

What electronic records establish it?

Policies

What policy authorized, prohibited, or shaped the conduct?

Decision-Makers

Who made the relevant decision?

Notice

Who knew about the issue and when?

Causation

What evidence connects the conduct to the injury?

Damages

What evidence establishes the resulting loss?

Contradictions

What evidence conflicts with the opposing party's account?

Preservation

What evidence could disappear?

Authentication

How will each critical exhibit be authenticated?

Remedy

What evidence supports the requested relief?

If these questions remain unanswered, discovery may not yet be complete.

APPENDIX A — RULE 34 REQUEST ARCHITECTURE

A production request should generally identify:

REQUEST NUMBER

DOCUMENT CATEGORY

DATE RANGE

CUSTODIAN/SOURCE

FORMAT

RELEVANCE

CLAIM SUPPORTED

PRIVILEGE ISSUES

FOLLOW-UP REQUIRED

The objective is to make each request independently understandable.

APPENDIX B — DEPOSITION PREPARATION SHEET

Witness: _____

Date: _____

Role: _____

Claims implicated: _____

Documents to authenticate: _____

Key chronology:

1. _____
2. _____
3. _____
4. _____

Decision-maker questions:

1. Who authorized the action?
2. What authority was relied upon?
3. What policy governed?
4. Who reviewed the decision?
5. What records were created?

Closing questions:

- Is there any other person who participated?
- Is there any other document concerning this event?
- Is there any other system containing responsive information?
- Are you aware of any policy governing this conduct?

APPENDIX C — ESI PRESERVATION CHECKLIST

□ Email accounts identified.

□ Relevant custodians identified.

□ Mobile devices identified.

□ Text-message systems considered.

□ Cloud storage identified.

□ Body-camera systems identified.

□ CAD/dispatch systems identified.

□ Surveillance systems identified.

□ Database systems identified.

□ Retention policies preserved.

□ Automatic deletion procedures identified.

□ Litigation hold issued where appropriate.

□ Third-party vendors identified.

□ Relevant metadata considered.

□ Audit logs considered.

APPENDIX D — DISCOVERY CONTROL SHEET

Item	Served/Received	Deadline	Response	Deficiency	Meet-and-Confer	Motion
Interrogatories						
RFPs						
RFAs						
Deposition						
Subpoena						
Supplemental discovery						

COLD PAPER WAR — VOLUME 4

Discovery is where allegations encounter documents.

The disciplined litigant does not merely ask whether the opposing party has evidence.

The disciplined litigant determines:

what evidence exists, who possesses it, how it was created, when it was created, whether it was preserved, what proposition it proves, and how it can properly enter the record.

That is the transition from accusation to proof.

Storytelling Adventures Studio Inc.

Cold Paper War — The Pro Se Litigation Guide

Volume 4 — Discovery, Evidence & the Record

Version 0.1 — October 2026